Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1180
Claimant:	David Garcia
Adjuster:	Valerie Rodriguez

2023-08-12 - Claim opened following report of a low-speed collision in a retail parking lot. Insured vehicle reported as struck while reversing. Claimant vehicle is a sedan with rear bumper damage. Police report not filed; both parties exchanged information at scene. Initial photos requested from insured and claimant.

2023-08-20 - Claimant has retained counsel. Attorney letter received requesting that all further contact be routed through their office. Claimant reports neck and back strain following the impact and has been seen at an urgent care facility. Medical records requested through counsel. Liability appears disputed on the question of which vehicle was backing up.

2023-08-21 - Spoke with defense side of the file regarding the recorded statement from the insured. Insured states the claimant vehicle was moving slowly through the lane and made contact with the rear quarter panel. Parking lot security camera footage was requested from the property owner. Footage retention window noted as limited, so follow-up scheduled promptly.

2023-08-26 - Received preliminary records from the urgent care visit documenting cervical and lumbar strain, muscle spasm, and a prescription for anti-inflammatories and physical therapy referral. Claimant's counsel indicated a demand package is being prepared. Reserve reviewed in light of the injury documentation and the open liability question. Independent appraisal of the claimant vehicle assigned.

2023-08-28 - Parking lot footage obtained from property management and reviewed. Footage shows partial view of both vehicles but does not clearly capture the moment of contact. Counsel notified that the footage has been secured. Physical therapy progress reports requested from the claimant's provider through counsel. Claim remains open pending liability determination and medical review.

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Recorded Statement

Claim number:	C-1180
Statement of:	David Garcia
Taken by:	Valerie Rodriguez
Date:	2023-08-15

Q: Thanks for taking the time to speak with me today. This recorded statement is about the parking lot collision you reported in Pearland. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state your full name for the record.

A: [Claimant name]. I'd rather just be called by my first name, though.

Q: That's fine. Can you walk me through what happened in the parking lot?

A: I was pulling out of a parking space near the front entrance of the shopping center. I checked my mirror and it looked clear, so I started backing out slowly. Then a white sedan came down the aisle much faster than I expected and hit the rear driver's side of my car.

Q: Were you moving when the impact happened?

A: Only a little. I'd just gotten the car into reverse and was rolling back, maybe a few feet.

Q: Did you see the other vehicle before the impact?

A: No, not until it hit me. I think it was coming around the row of parked cars.

Q: Were you injured at the scene?

A: I felt a jolt through my neck and lower back, but I didn't think much of it at first. By that evening my neck was stiff and my lower back was really sore.

Q: Have you sought medical treatment since the collision?

A: Yes, I went to urgent care the next day. They diagnosed me with a neck strain and a lower back strain, and they told me to rest and do physical therapy.

Q: Are you still experiencing symptoms?

A: Yes. Turning my head to the left is painful, and I can't sit for long periods without my back aching.

Q: Is there anything else you think I should know?

A: Only that I'm following the treatment plan and I'd like to keep my records up to date for you.

Q: Thank you. That concludes the statement.